

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maryann Wong	Team: Team # 2	CCRB Case #: 201106793	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 05/16/2011 12:45 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 11/16/2012	Precinct: 83		
Date/Time CV Reported Fri, 05/20/2011 12:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/25/2011 7:17 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Derek Almeida	25236	946426	083 PCT
2. POM Randolph Burgher	01120	939952	083 PCT
3. POF Michele Herbst	16694	930338	083 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Ludemann	10721	938892	083 PCT
2. POF Samantha Regan	26628	933237	DB BSVS

Officer(s)	Allegation	Investigator Recommendation
A . POM Derek Almeida	Force: PO Derek Almeida used physical force against § 87(2)(b)	A . Exonerated
B . POF Michele Herbst	Discourtesy: PO Michele Herbst spoke obscenely to § 87(2)(b)	B . Unsubstantiated
C . POF Michele Herbst	Force: PO Michele Herbst used physical force against § 87(2)(b)	C . Exonerated
D . POM Randolph Burgher	Force: PO Randolph Burgher used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Exonerated

Case Summary

On May 20, 2011, § 87(2)(b) filed a complaint with IAB, log #11-23212. On May 25, 2011, IAB referred the complaint to the CCRB (encl. 3A-E).

On May 16, 2011, around 1:10 p.m., § 87(2)(b) and his friend, § 87(2)(b) § 87(2)(b) were arrested for § 87(2)(a) 160.50 at § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) was also charged with § 87(2)(b). The following allegations resulted from the officers' actions.

- **Allegation A – Force: PO Derek Almeida used physical force against § 87(2)(b)**
§ 87(2)(g) It is recommended that Allegation A be **exonerated**.
- **Allegation B – Discourtesy: PO Michele Herbst spoke obscenely to § 87(2)(b)**
§ 87(2)(g) It is recommended that Allegation B be **unsubstantiated**.
- **Allegation C – Force: PO Michele Herbst used physical force against § 87(2)(b)**
§ 87(2)(b)
- **Allegation D – Force: PO Randolph Burgher used physical force against § 87(2)(b)**
§ 87(2)(b)
- **Allegation E – Force: An officer used physical force against § 87(2)(b)** § 87(2)(g)
§ 87(2)(g) It is recommended that Allegations C, D and E be **exonerated**.

§ 87(2)(b) alleged that he was falsely arrested. § 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black male, § 87(2)(b) with black hair and brown eyes.

CCRB Testimony

On June 1, 2011, § 87(2)(b) was interviewed at the CCRB (encl. 4A-E).

On May 16, 2011, around 1:10 p.m., § 87(2)(b) was walking from his home at § 87(2)(b) in Brooklyn to his female friend's home, which is located on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) and his female friend were planning on smoking crack cocaine later that day. § 87(2)(b) had 15 pieces of crack cocaine in his left, sweatshirt pocket. § 87(2)(b) did not buy the cocaine that day, and he was not yet under the influence of any drugs.

When § 87(2)(b) was on § 87(2)(b) and walking on the right side of the street going towards § 87(2)(b), he noticed a black, unmarked van driving slowly next to him. § 87(2)(b) was not doing anything illegal, so he did not pay attention to the van.

Once § 87(2)(b) got to the intersection of § 87(2)(b) and § 87(2)(b) he ran into his acquaintance, a young, black male. § 87(2)(b) did not know the male's name, but the male

was identified via the arrest report as § 87(2)(b) § 87(2)(b) had been walking on § 87(2)(b) and had just turned onto § 87(2)(b) § 87(2)(b) and § 87(2)(b) had not been planning to meet; it was a coincidence that they ran into one another. § 87(2)(b) shook § 87(2)(b) hand and the two males started walking on § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not exchange money, drugs or any other items.

The males walked on § 87(2)(b) for less than two minutes when the unmarked black van pulled over and two uniformed officers, PO Randolph Burgher¹ and PO Michele Herbst² jumped out. § 87(2)(b) immediately grabbed his shirt and raised it up so that the officers could see that he did not have a weapon. § 87(2)(b) explained that when the gun squad pulls over individuals, they always ask that the individuals raise their shirt, which is why § 87(2)(b) conducted this action.

PO Herbst asked § 87(2)(b) where he came from and § 87(2)(b) responded that he was just walking down § 87(2)(b) PO Herbst said that this was a lie and told § 87(2)(b) and § 87(2)(b) to put their hands on the van. Both males complied. PO Herbst patted § 87(2)(b) down and then went inside his left, jacket pocket where the crack cocaine was. § 87(2)(b) assumed that PO Burgher was patting down § 87(2)(b) but he was not sure.

After PO Herbst found the cocaine, § 87(2)(b) immediately fled. PO Burgher and PO Herbst did not chase § 87(2)(b) A marked police vehicle pulled onto § 87(2)(b) and blocked the street so that § 87(2)(b) could not run down the street. § 87(2)(b) ran across the street and a black, unmarked Impala pulled out on the other side, blocking him from escaping. § 87(2)(b) slowed down but did not come to a complete stop. § 87(2)(b) had run less than one street length before the officers captured him.

PO Derek Almeida³ got out of the passenger side of the marked police vehicle and grabbed § 87(2)(b) from behind. § 87(2)(b) did not resist in any way; he did not swing, move his head, rock his body or conduct any other action. PO Almeida did not handcuff § 87(2)(b) but held § 87(2)(b) hands behind his back and walked him towards the black Impala.

At the Impala, PO Almeida lifted § 87(2)(b) § 87(2)(b) feet came off the ground) and pushed § 87(2)(b) face-first onto the trunk of the Impala. § 87(2)(b) heard an officer tell PO Almeida to bring § 87(2)(b) to the ground and PO Almeida “slammed” § 87(2)(b) onto the ground. § 87(2)(b) felt a knee on his back and handcuffs being placed onto his hands.

After being handcuffed, and while he was still on the ground, § 87(2)(b) felt more than five blows to his face and head; § 87(2)(b) assumed that the officers were punching him. § 87(2)(b) could not see which officers were punching him. At one point, § 87(2)(b) looked up and saw PO Herbst. PO Herbst told § 87(2)(b) “You bastard, you shouldn’t have run.” PO Herbst punched § 87(2)(b) one time on the right side of § 87(2)(b) face near his eye.

¹ § 87(2)(b) described PO Burgher as an Indian or Jamaican male, 5’6” tall with a medium build. PO Burgher fits this description and admitted to interacting with § 87(2)(b).

² § 87(2)(b) described PO Herbst as a short, large Hispanic female. PO Herbst fits this description and admitted to interacting with § 87(2)(b).

³ § 87(2)(b) described PO Almeida as a Hispanic male, 5’5” tall and thin. PO Almeida fits this description and admitted to interacting with § 87(2)(b).

PO Burgher picked § 87(2)(b) up and pushed him face-first into the black Impala. § 87(2)(b) wanted to sit up straight so he jerked his body up. § 87(2)(b) did not kick PO Burgher or put his feet out – he only jerked his upper body upright. PO Burgher told § 87(2)(b) that he tried to kick him and punched § 87(2)(b) one time on the right side of § 87(2)(b) face near his eye. Another officer who § 87(2)(b) could not see punched § 87(2)(b) on the left side of his face near his eye.

Two officers in plainclothes § 87(2)(b) did not remember what they looked like) drove § 87(2)(b) to the precinct in the black Impala.

At the precinct, while § 87(2)(b) was in the cells with other defendants, a Hispanic male officer told § 87(2)(b) that he would delay everyone's arrest processing if he went to the hospital. § 87(2)(b) believed that this officer made this comment on purpose so that the other defendants in the cell would hear him. The other defendants in the cell told § 87(2)(b) that they would beat him up if he delayed their processing, so § 87(2)(b) never requested medical attention.

Sometime around § 87(2)(b) § 87(2)(b) did not know the exact day), § 87(2)(b) went to § 87(2)(b). He sustained bruises on his face and a knot on the top of his head.

Civilians not Interviewed

On June 1, 2011, the undersigned called and spoke with § 87(2)(b) stated that he did not want to make a statement, but then stated that he needed the weekend to think it over. Between June 6 and June 10, 2011, the undersigned called § 87(2)(b) five times, but § 87(2)(b) did not have a voicemail system activated so the investigator was unable to leave a message. On June 1 and June 10, 2011, the undersigned sent § 87(2)(b) two letters; these letters were not returned. A search on the Department of Corrections website confirmed that § 87(2)(b) is not currently incarcerated.

NYPD Statements

Subject Officer: OFFICER RANDOLPH BURGHER

- PO Burgher is a black male, § 87(2)(b) with black hair and brown eyes.
- On May 16, 2011, PO Burgher worked from 7:00 a.m. to 3:30 p.m., was assigned to SNEU, worked with PO Samantha Regan and PO Almeida, dressed in uniform and was assigned to an unmarked gray vehicle; PO Regan was the operator.

Memo Book

PO Burgher did not have any memo book entries regarding the incident.

CCRB Testimony

On June 21, 2011, PO Burgher was interviewed at the CCRB (encl. 5A-E).

The officers received a radio transmission from the observation post officers, Dilson Abreu and Calvin Perez. PO Abreu and PO Perez reported that they had observed a drug transaction at the location and provided a description of the suspects. PO Burgher did not recall what the description was. PO Burgher and his partners were a block away and immediately responded. PO Herbst and PO Ludemann got to the location right before PO Burgher, PO Almeida and PO Regan, and were attempting to place § 87(2)(b) and § 87(2)(b) under arrest.

PO Burgher observed § 87(2)(b) fling his arm away from PO Herbst and take off running. PO Herbst pursued § 87(2)(b) on foot. PO Burgher and PO Almeida also pursued § 87(2)(b) in their vehicle. § 87(2)(b) ran in and out of traffic on § 87(2)(b). Once the officers were close enough to § 87(2)(b), PO Almeida and PO Burgher jumped out of their vehicle. PO Almeida reached § 87(2)(b) first and started struggling with him. § 87(2)(b) resisted by flailing his arms. PO Burgher then approached and both officers brought § 87(2)(b) to the ground.

Once on the ground, § 87(2)(b) kicked violently and refused to give the officers his hands. PO Almeida and PO Burgher wrestled with § 87(2)(b) on the ground until they were able to place the handcuffs on him. Neither officer punched § 87(2)(b). PO Burgher thought that PO Herbst physically assisted in apprehending § 87(2)(b) but he did not know for sure. PO Herbst never called § 87(2)(b) a “bastard.” Either PO Herbst or PO Almeida handcuffed § 87(2)(b). PO Burgher did not know where PO Regan was at this time, but he assumed that she was parking the police vehicle.

After being handcuffed, § 87(2)(b) did not continue to resist. PO Burgher thought that he placed § 87(2)(b) into the police vehicle, but he did not know for sure. § 87(2)(b) did not resist getting inside the vehicle. No force was used against § 87(2)(b) when he was being placed inside the vehicle.

PO Almeida and PO Burgher transported § 87(2)(b) to the precinct. During the ride, § 87(2)(b) screamed obscenities and kicked the back of the front seats. PO Burgher ignored this. § 87(2)(b) never complained of any injuries; PO Burgher did not see any injuries on § 87(2)(b).

Subject Officer: OFFICER MICHELLE HERBST

- PO Herbst is a Hispanic female, § 87(2)(b) with black hair and brown eyes.
- On May 16, 2011, PO Herbst worked from 7:00 a.m. to 3:35 p.m., was assigned to SNEU, worked with PO Daniel Ludemann, dressed in uniform and was assigned to an unmarked black van as the recorder.

Memo Book

PO Herbst did not have any memo book entries regarding the incident.

CCRB Testimony

On June 13, 2011, PO Herbst was interviewed at the CCRB (encl. 7A-E) § 87(2)(g).

PO Herbst and PO Ludemann arrived on scene and immediately detained both males. PO Herbst patted down § 87(2)(b) while PO Ludemann patted down § 87(2)(b). § 87(2)(b) kept referring to PO Herbst as a “sweetheart.” PO Herbst ignored this. PO Herbst found crack cocaine on § 87(2)(b) person.

As soon as PO Herbst found the cocaine, § 87(2)(b) spun around. PO Herbst tried to grab him but her finger got caught in § 87(2)(b) clothes. § 87(2)(b) started pulling his clothes off and ran across § 87(2)(b) which has four lanes of traffic; two lanes going northbound and two lanes going southbound.

PO Herbst crossed the street without looking. PO Herbst ran about one block after § 87(2)(b). Then § 87(2)(b) turned around on § 87(2)(b) and started running east. PO Herbst, PO Almeida and PO Burgher grabbed § 87(2)(b). PO Herbst did not know what actions PO Almeida and PO Burgher conducted, but PO Herbst brought § 87(2)(b) to the ground. § 87(2)(b) § 87(2)(b) kicked and kept his hands in front of his body. PO Herbst did not punch § 87(2)(b). she gained control over him by grabbing his hands. PO Herbst never called § 87(2)(b) a “bastard.”

After being handcuffed, § 87(2)(b) continued to resist by moving his shoulders and his body around. PO Herbst did not place § 87(2)(b) into the police vehicle. Instead, PO Herbst ran back to PO Ludemann because he was alone with § 87(2)(b). PO Herbst did not witness § 87(2)(b) being placed into the police vehicle. PO Herbst and PO Ludemann transported § 87(2)(b) back to the precinct.

PO Herbst saw § 87(2)(b) at the precinct when he was providing pedigree information. PO Herbst did not observe any injuries on § 87(2)(b) and § 87(2)(b) did not complain of any injuries.

Subject Officer: OFFICER DEREK ALMEIDA

- *PO Almeida is a Hispanic male, § 87(2)(b) with brown hair and brown eyes.*
- *On May 16, 2011, PO Almeida worked from 7:00 a.m. to 3:35 p.m., was assigned to SNEU, worked with PO Regan, dressed in plainclothes and was assigned to an unmarked vehicle as the recorder.*

Memo Book

PO Almeida did not have any memo book entries regarding the incident.

CCRB Testimony

On June 16, 2011, PO Almeida was interviewed at the CCRB (encl. 6A-E) § 87(2)(g).
§ 87(2)(g)

Witness Officer: OFFICER SAMANTHA REGAN

- *PO Regan is a white female, § 87(2)(b) with blonde hair and blue eyes.*
- *On May 16, 2011, PO Regan worked from 7:00 a.m. to 3:35 p.m., was assigned to SNEU, worked with PO Burgher and PO Almeida, dressed in uniform and was assigned to an unmarked vehicle as the operator.*

Memo Book

PO Regan did not have her memo book because she was recently reassigned to the Special Victim’s Unit.

CCRB Testimony

On July 5, 2011, PO Regan was interviewed at the CCRB. § 87(2)(g)
§ 87(2)(g) However, PO Regan did not see the officers handcuff § 87(2)(b) because she was parking the car. PO Regan also stated that § 87(2)(b) resisted getting into the vehicle by screaming and refusing to sit down. PO Regan did not remember who placed § 87(2)(b) into the vehicle but did not see any officer punch him when he was placed inside the vehicle.

Officers not Interviewed

§ 87(2)(g)

Medical Records

The medical records were requested and will be added to the case file upon receipt. § 87(2)(g)

NYPD Documents

Arrest Report (encl. 9A-D)

§ 87(2)(a) 160.50

§ 87(2)(b) resisted arrest by pushing off the officer and running until apprehended where the defendant refused to be handcuffed by flailing his arms.

Arrest Photo (encl. 4D)

§ 87(2)(b) arrest photo does not show any visible injuries to the face. There is possible swelling to his left eye, but the lighting in the photo is such that it is unclear.

Status of Civil Proceedings (encl. 11A)

As of June 21, 2011, § 87(2)(b) has not filed a notice of claim in regard to the incident.

Arrest Disposition

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2D).

Subject Officer CCRB History

- PO Burgher has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Almeida has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2B).
- PO Herbst has been a member of the service for eight years and there are four substantiated CCRB allegations against her. In case #200407799, three abuse of authority

allegations and one discourtesy allegation was substantiated for which PO Herbst received a command discipline (encl. 2C).

Conclusion

Identification of Subject Officers

- PO Burgher, PO Almeida and PO Herbst admitted to interacting with § 87(2)(b)
- § 87(2)(b) testified that he did not see the face of the officer who punched him in the police vehicle. § 87(2)(g)

Allegations not Pled

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: PO Derek Almeida used physical force against § 87(2)(b)

Allegation C – Force: PO Michele Herbst used physical force against § 87(2)(b)

Allegation D – Force: PO Randolph Burgher used physical force against § 87(2)(b)

Allegation E – Force: An officer used physical force against § 87(2)(b)

All parties agree that § 87(2)(b) fled the scene.

§ 87(2)(b) testified that PO Almeida lifted § 87(2)(b) § 87(2)(b) feet came off the ground) and pushed § 87(2)(b) face-first onto the trunk of the police vehicle. Then, after being brought to the ground and handcuffed by PO Almeida, § 87(2)(b) felt five blows to his head and face. While on the ground, PO Herbst punched § 87(2)(b) on the right side of his face. Then, when PO Burgher placed § 87(2)(b) into the police vehicle, § 87(2)(b) jerked his body upright; in response, PO Burgher punched § 87(2)(b) on the right side of his face and an officer who § 87(2)(b) could not see punched § 87(2)(b) on the left side of his face. § 87(2)(b) denied resisting.

All officers testified that § 87(2)(b) resisted by kicking his feet and flailing his arms. PO Burgher and PO Almeida testified that they wrestled with § 87(2)(b) on the ground; they denied punching him. PO Herbst also denied punching § 87(2)(b) she testified that she gained control over him by grabbing his arms. PO Burgher and PO Almeida testified that there was no struggle when placing § 87(2)(b) in the police vehicle, but stated that § 87(2)(b) screamed obscenities and kicked the front seats of the police vehicle during the transport back to the precinct. PO Regan testified that § 87(2)(b) resisted getting inside the vehicle by refusing to sit down, but that no officer punched him.

The NYPD Patrol Guide, section 203-11 (encl. 1A-B), states that officers should only use the amount of force necessary to overcome resistance.

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted] It is recommended that Allegations A, C, D and E be **exonerated**.

Allegation B – Discourtesy: PO Michele Herbst spoke obscenely to § 87(2)(b) [Redacted]

§ 87(2)(b) [Redacted] alleged that PO Herbst called him a “bastard” for fleeing the scene. PO Herbst denied this and PO Burgher and PO Almeida corroborated PO Herbst’s account. § 87(2)(b) [Redacted]

§ 87(2)(g) [Redacted] It is recommended that Allegation B be **unsubstantiated**.

Team: _____ :

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date